

FLOOR AMENDMENT
HOUSE OF REPRESENTATIVES
State of Oklahoma

SPEAKER:

CHAIR:

I move to amend HB4253 _____
Of the printed Bill
Page _____ Section _____ Lines _____
Of the Engrossed Bill

By deleting the content of the entire measure, and by inserting in lieu thereof the following language:

AMEND TITLE TO CONFORM TO AMENDMENTS

Adopted: _____

Amendment submitted by: Chris Kannady _____

Reading Clerk

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

FLOOR SUBSTITUTE
FOR

HOUSE BILL NO. 4253

By: Kannady

FLOOR SUBSTITUTE

An Act relating to school employees; amending 70 O.S. 2021, Section 509.11, which relates to equal access to employees of a school district; modifying what constitutes access regarding statewide professional educators' associations; prohibiting equal access from being conditional on certain provisions or services; directing certain communications to be classified as promotional events; permitting distribution of certain materials in school mailboxes; prohibiting a school district from requiring a fee or other payment from statewide professional educators' associations for certain activities; requiring certain notification if certain equal access is denied; requiring notification of the State Board of Education if equal access is not granted within certain time period; updating statutory language; allowing school district employees to terminate membership in certain organization at any time; prohibiting an organization from taking certain actions; prohibiting certain policy or agreement from placing certain conditions or requirements on certain initiation or termination; providing certain construction; providing for codification; providing an effective date; and declaring an emergency.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

1 SECTION 1. AMENDATORY 70 O.S. 2021, Section 509.11, is
2 amended to read as follows:

3 Section 509.11. A. No school district, employee of a school
4 district, or employee organization shall deny by any means,
5 including a collective bargaining agreement, a statewide
6 professional educators' association equal access to employees of the
7 school district, to the same extent that access is granted to other
8 educators' associations. For purposes of this section, access shall
9 include, but is not limited to:

10 1. Setting up informational tables at in-service or other
11 similar teacher meetings;

12 2. Speaking at in-service or other similar teacher meetings;

13 3. Distributing information ~~in school mail boxes or~~ through the
14 school ~~e-mail~~ electronic mail system;

15 4. Utilizing school district meeting rooms during nonworking
16 hours;

17 5. Representing employees in employment matters, when requested
18 by the employee;

19 6. Posting information on school district bulletin boards or
20 other common space displays; and

21 7. ~~Utilizing school district printing services~~ Promotional
22 events.

23

24

1 B. Any association which utilizes school district facilities or
2 services shall reimburse the district for any costs incurred by the
3 district due to association activities.

4 C. Equal access shall not be conditional on provisions or
5 services requested by school districts including, but not limited
6 to, furnished meals, snacks, gifts, donations, or other types of
7 sponsored activities.

8 D. Communication by an employee, volunteer, or member of a
9 statewide professional educators' association on behalf of the
10 association or a local affiliate group that pertains to a collective
11 bargaining agreement or negotiated employment contract pursuant to
12 Section 509.2 of this title shall, for the purposes of this section,
13 be classified as a promotional event hosted by the statewide
14 association, and all other statewide professional educators'
15 associations and their employees shall be granted equal access to
16 communicate with school employees to the same extent. For the
17 purposes of this section, communication includes, but is not limited
18 to, presentations, speaking events, meetings, electronic mails,
19 informational displays, and virtual forum posts.

20 E. Distribution of promotional materials to all employees in
21 school mailboxes by employees or associated members of a statewide
22 professional educators' association shall be permitted. Promotional
23 materials may include, but are not limited to, promotional
24

1 brochures, competitor comparison brochures, informational pamphlets,
2 membership applications, gift items, and association member gifts.

3 F. School districts shall not require a fee or other payment
4 from statewide professional educators' associations for access,
5 promotional material review, promotional material distribution, or
6 other related activities.

7 G. 1. A statewide professional educators' association that is
8 not allowed access as provided for in this section shall notify the
9 board of education of the school district where access was denied.

10 2. Upon notification, if the school district board of education
11 does not ensure equal access is provided to the statewide
12 professional educators' association within fifteen (15) days, the
13 association shall notify the State Board of Education.

14 SECTION 2. NEW LAW A new section of law to be codified
15 in the Oklahoma Statutes as Section 509.13 of Title 70, unless there
16 is created a duplication in numbering, reads as follows:

17 A. A school district employee who is a member of an employee
18 organization designated pursuant to Section 509.2 of Title 70 of the
19 Oklahoma Statutes may terminate membership in the employee
20 organization at any time. Upon receipt of a school district
21 employee's termination of membership via mail or electronic mail,
22 the employee organization shall terminate the employee's membership
23 and cease collection of dues.

1 B. An employee organization designated pursuant to Section
2 509.2 of Title 70 of the Oklahoma Statutes shall be prohibited from:

3 1. Limiting a school district employee's right to terminate his
4 or her membership only during certain dates or by using specific
5 forms; and

6 2. Requiring a school district employee to disclose the reason
7 for his or her membership termination.

8 C. 1. No school district board of education policy or
9 negotiated agreement shall place any other conditions or
10 requirements on any school district employee to initiate or
11 terminate membership in an employee organization.

12 2. Any negotiated agreement in effect upon the effective date
13 of this act that places any conditions or requirements on any school
14 district employee to initiate or terminate membership in an employee
15 organization shall be null and void upon the effective date of this
16 act.

17 SECTION 3. This act shall become effective July 1, 2026.

18 SECTION 4. It being immediately necessary for the preservation
19 of the public peace, health, or safety, an emergency is hereby
20 declared to exist, by reason whereof this act shall take effect and
21 be in full force from and after its passage and approval.

22
23 60-2-17219 SW 03/24/26
24